

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302008	QUINTERO vs WON	Motion to Compel and Motion to Deem Matters Admitted

Tentative Ruling:

These motions are unopposed. Accordingly, both are granted in all respects. Moving party to give notice of ruling within 10 days of this ruling. The Court has signed the proposed order re: form interrogatories. However, the Court has not received a proposed order for the motion to deem matters admitted. Moving party to submit an order for Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304264	ANDERSON vs WRIGHT	MOTION TO SET ASIDE

Tentative Ruling:

This is a partition action. Plaintiff William Anderson filed the operative Complaint on August 8, 2023 seeking partition of the real property located at 1365 Melstone Street, Beaumont, California. (Complaint ¶2.)

On August 25, 2025, the Court dismissed the entire action with prejudice. The matter was dismissed because on April 25, 2025, the date the matter was set for trial, the parties informed the court they had reached an unconditional settlement. The court did not receive a declaration stating good cause to not dismiss the matter (Local Rule 3116), so it was dismissed.

Plaintiff then moved to set aside the dismissal, reinstate the Complaint, and enter judgment in the sum of \$50,000 in favor of plaintiff pursuant to the parties' settlement agreement reached on April 25, 2025. The motion was made pursuant to CCP §473(b) and on the grounds that Defendant defaulted on the settlement agreement because she failed to refinance or remove Plaintiff's name from the mortgage loan as agreed to. On December 12, 2025, the Court granted the motion and set aside the dismissal. The Court set an OSC re: why the case should not be dismissed after settlement to be heard on February 26, 2026. (12/12/25 Minute Order.) The OSC was later continued to April 20, 2026. (2/25/26 Minute Order.)

Defendant Wright then brought a motion to "strick[e] and vacat[e] all filings made after the dismissal of this action on August 25, 2025, including but not limited to the September 25, 2025 filings and purported judgment in the amount of \$50,000" on the following grounds: (1) the action was dismissed after Plaintiff failed to comply with a Court-ordered deadline to file an Order to Show Cause arising from mediation; (2) upon dismissal, the Court lacked jurisdiction to accept further merits-based filings absent a motion or order restoring jurisdiction; (3) the post-dismissal filings are void as a matter of law; and (4) the unauthorized filings interfered with Defendant's right to notice and due process, particularly prejudicial to a self-represented litigant. Defendant claimed she did